



Fiona Stanley Fremantle Hospitals Group

OFFICIAL

Procedure

Release of medical record information: mental health

Scope

Site	Service/Department/Unit	Disciplines
Fiona Stanley Hospital Fremantle Hospital	Mental Health Service	Medical, Nursing, Allied Health, Administration

1. Introduction

The Mental Health Act (MHA) 2014 s. 248 supports the right of a person who is or was provided with treatment or care by a mental health service (MHS) to inspect and be given a copy of the whole or any part of the persons medical record or any other relevant document about the person. This procedure outlines the MHS response to requests for medical record access under the MHA 2014 including restrictions to access.

2. Terminology

Freedom of information Act 1992	An Act to provide for public access to documents, and to enable the public to ensure that personal information in documents is accurate, complete, up to date and not misleading, and for related purposes.
Informed consent	Where a consumer receives sufficient and meaningful information about the proposed treatment (as relevant to the consumers situation including material risks and responses to consumer queries) to enable them to make an informed decision

3. Procedure

3.1. Request for access

- The consumers right to access records is distinct from the right of person to apply for information under the Freedom of Information (FOI) Act 1992 and will be managed separately to a FOI application.
- Allowing consumers access to their medical records is consistent with the principles of recovery and patient-centred care.
- The MHS will ensure that any request by a person for the release of medical information is dealt with as soon as practicable after the request is received.
- Timely access to medical record information allows the consumer and their representatives to adequately prepare for Mental Health Tribunal reviews.
- A current or previous mental health consumer is entitled to inspect and be given a copy of any relevant documentation, such as the consumers medical record that is in the possession or control of the MHS. A timely response will be facilitated by:
 - Release of information requests must be made in writing.
 - Staff working with the consumer and their representative to clarify the information required
 - Requesting consumers and their representatives provide as much notice as possible in regard to the date and time of a Mental Health Tribunal review
 - The Consultant Psychiatrist or delegate (Registrar) will authorise the release of information documenting approval on the Authorisation to Release Information form prior to release
 - The Release of Information (ROI) Officer will retain a copy of the authorisation to release information
- The consumer will be informed if there is a delay in accessing their information; including the reason for the delay and how long the delay will be.

3.2. Provision of written information

- The ROI Officer copies the appropriate information as per request for information, and the level of access approved by the Consultant/delegate.
- In some circumstances, it may be appropriate to withhold parts of the medical record to ensure consumer and/or staff safety. This may include third party comment and documentation where the clinician has made a notation with an asterisk accompanied by a clearly written statement stating that this information should not be released to the patient and a brief rationale. The extent of the information which is not to be released should be specified.

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- The ROI Officer will discuss any concerns with information to be redacted with the treating medical team
- If information is required to be edited:
 - The ROI Officer will download all relevant documents from the digital medical record and saved in a folder on the W Drive.
 - Information that is to be withheld will be 'marked up' for redaction by the ROI Officer
 - This information is reviewed by the treating clinician with mark ups amended/added where necessary
 - Once all amendments/additions are finalised, the ROI Officer will apply the mark-ups and save the final redacted version
- The information will be provided in the format and via delivery mode requested by the patient.

3.3. Restriction on access

- If a request to access the medical record is refused, the reasons for the refusal must be documented in the consumers medical record and a copy of the Form 12B Refusal of request to access records given to the consumer.
- It is rare that a whole medical record is restricted. Generally, sections may be restricted while allowing the rest of the document to be accessed.
- There must be valid reasons for the refusal. Under the MHA 2014, s. 249, the request may be refused if the consultant psychiatrist reasonably believes any one or more of the following:
 - Disclosing the information poses a significant risk to the health or safety of the consumer or others
 - There is a risk of significant harm to the consumer or others
 - It would involve disclosing personal information about somebody else
 - Information is of a confidential nature that was obtained in confidence
 - The consumer is a detainee under the Criminal Law (Mental Impairment) Act 2023 in an authorised hospital, and the relevant document came into existence under or for the purposes of the Prisons Act 1981.
- When a request is restricted:
 - The Head of Service or delegate will complete a MHA 2014 Form 12B Record of refusal of a patients request to access document and send to the ROI Officer to file in the consumers medical record and provide a copy to the consumer
 - The consumer will be informed in writing

- The decision may be challenged by the consumer, and they have the right to make a complaint to the MHS or formally to the Health and Disability Services Complaints Office (HaDSCO)
- The consumer has the right to make a request under the FOI Act 1992
- The consumer may nominate a medical and/or legal practitioner to inspect and to be given a copy of the document. Information that reveals details about an individual other than the consumer or information of a confidential nature obtained in confidence, will not be disclosed to the consumer or medical/legal practitioner under section 250 of the MHA 2014.

4. Compliance/Performance Monitoring

The ROI Officer will maintain a database of all requests for access of medical records information, including the level of approval and timeliness of response. Reports will be generated as requested.

5. Related Policy Documents

- WA Health:
 - [Information Access Use and Disclosure Policy \(MP 0015/16\)](#)
- SMHS:
 - [Health record access, use and disclosure \(SMHS:83\)](#)
 - [Mental Health Advocates \(SMHS:162\)](#)
 - [Rights of mental health consumers \(SMHS:164\)](#)
- FSFHG:
 - Clinical Documentation

6. Related Legislation

- [Mental Health Act 2014](#)
- [Criminal Law \(Mental Impairment\) Act 2023](#)
- [Freedom of Information Act 1992](#)
- [Prisons Act 1981](#)

7. Related Standards

- NSQHS Standards:
 - Clinical Governance
 - Partnering with Consumers.
- Chief Psychiatrist Standards for Clinical care:
 - Assessment
 - Consumer and carer involvement in individual care
 - Risk assessment and management

8. Authorisation

EXECUTIVE SPONSOR: Service Director, Service 5					
Version	Date Issued	Compiled/Revised By	Committee/Consumer Group Consulted	Endorsed By	Revision due
1	02/2016	CNS, CI	FH Clinical Governance Committee	FH Policy Committee	02/2019
2	09/2018	CNS, CI	MHS Safety Quality Risk Committee	FSFHG Policy Committee	09/2021
3	10/2021	CNS, CI		SQR Committee, Service 5	10/2025
4	03/2026	CNS, CI		SQR Committee, Service 5	03/2029